

payment are standard in lemon law actions, and the delay was not unusually long or unexpected.

Costs and Expenses: The Song-Beverly Act provides that the court will award a successful plaintiff a sum equal to the aggregate amount of costs and expenses, which have been determined to have been reasonably incurred. Civ. C. § 1794(d). Plaintiff filed a detailed expense report. GM does not object to any costs. Total costs are \$1,228.77. Costs appear reasonably incurred and will be awarded.

The motion for attorney fees and costs is **GRANTED**. Attorney fees of \$12,560.00 and costs of \$1,228.77 are awarded, for a total of \$13,788.77. No proposed order has been lodged as required by Local Rule 5.17(D). Plaintiff shall submit the order.

KUNAU VS. CITY OF REDDING, ET AL.

CASE NUMBER: 24CV-0205953

Tentative Ruling on Motion for Leave to File Cross-Complaint: Defendant/Cross-Defendant City of Redding moves for leave to file a Cross-Complaint against Defendant/Cross-Complainant Sysco Sacramento, Inc. Sysco Sacramento, Inc. filed a limited opposition that does not oppose the merits of the motion, but seeks a continuance of the September 10, 2026 trial date should the motion be granted. The City of Redding argues that a continuance is not necessary. Although Plaintiff Cody Kunau was served with the Motion and Opposition, Plaintiff did file a response.

Cross-complaints are to be filed at the same time as the Answer. However, a party may obtain leave of Court to file a cross-complaint at any time. Leave may be granted in the interest of justice. CCP § 428.50. Allowing the City of Redding to file the proposed Cross-Complaint is in the interest of justice. Sysco Sacramento, Inc.'s request for a continuance is reasonable.

The motion is **GRANTED**. A proposed Cross-Complaint was not lodged, therefore, the City of Redding will need to file the Cross-Complaint. The City of Redding is granted ten days leave to file the Cross-Complaint. The September 10, 2026 trial date is vacated. Discovery will remain open and all discovery deadlines will be based on the new trial date. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial and appear to set a new trial date. The City of Redding provided a proposed Order that will be modified to reflect the Court's ruling.

MCCLOSKEY VS. CITY OF REDDING, ET AL.

CASE NUMBER: 25CV-0209479

Tentative Ruling on Motion for Summary Judgment: Petitioner Allen Donald McCloskey moves for summary judgment on his Verified Petition for Writ of Mandate filed on December 19, 2025. Respondents City of Redding, Redding Fire Department, Jerrod Vanlandingham, and Hailey Holstein oppose the motion.

As a preliminary matter, the Court notes that while Petitioner timely filed his Reply on June 3, 2026, two Supplemental Declarations were filed on June 15, 2026.

A reply to the opposition shall be served and filed by the moving party not less than 11 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise. The reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers.

CCP § 437c(b)(4)

The Supplemental Declarations filed June 15, 2026 will not be considered as they were filed in violation of the statute.